

02:00 PM **LINE 4**

23-CIV-03393

ERICA ROBINSON VS. DORATRIZ PADILLA, ET AL

ERICA ROBINSON
DORATRIZ PADILLA

NIALL P. MCCARTHY
PETER L. ISOLA

Defense Motion for Summary Judgment and Alternative Motion for Summary Adjudication

TENTATIVE RULING:

Defendants Doratriz Padilla and eXp Realty have moved for summary judgment or, alternatively, summary adjudication of issues against plaintiff Erica Robinson, as Successor-in-Interest to the Estate of Martin J. Lanfranco and as executor of the Martin J. Lanfranco Revocable Trust.

For reasons addressed below, defendants' motion is **DENIED** as to plaintiff's first, second, and third causes of action, and as to plaintiff's demand for punitive damages against defendant Padilla. Defendant's motion is **GRANTED** as to plaintiff's demand for punitive damages against defendant eXp Realty.

The court declines to rule on the objections filed by plaintiff and defendant, as the the evidence subject to those objections is not material to the disposition of this motion. (Code Civ. Proc., § 437c, subd. (q).)

A. Factual Summary

Plaintiff's decedent Martin Lanfranco was an 84-year-old man who, before he died in 2024, had managed his acute bi-polar and schizoaffective disorder with the support of family over many years. (Pltf's Separate Statement of Undisputed Material Facts in Opp. to MSJ [Pltf's SSUMF] and Additional Material Facts [AMF], filed June 11, 2026 Nos. 1, 10-11.) Lanfranco was married to Esperanza Bijasa and had regular contact with Esperanza's daughter Christianne (Chris) Kernes and her husband Shawn. (AMF Nos. 5-7.) Given Lanfranco's mental illness, his family generally assisted with, or at least was looped in on, his real estate decisions. (AMF No. 12.) When Lanfranco first inquired in 2020 about listing his condo at 555 Laurel Avenue (the Laurel Property) for sale, his family understood that his interest in understanding the condo's value was a symptom of his mental illness. (AMF No. 13.) According to his son-in-law Shawn Kernes, when Lanfranco was in a manic episode he would become obsessed with attempting to value his assets, including any real estate he owned. (*Ibid.*) In March 2021, Lanfranco indicated that he intended to move closer to Chris and Shawn, so they lined up showings for him in the El Dorado Hills area. (AMF No. 17.) Lanfranco abruptly changed course and decided he wanted to sell his condo and move to a single-family home in San Mateo. (AMF Nos. 18-20.)

Around April 18, 2022, Lanfranco also began working with Edgardo (Ed) Barreto of Side Inc. to sell the Laurel Property and purchase a single-family home. (Defts.' Separate Statement of Undisputed Material Facts [Defts' SSUMF], filed April 9, 2026, No. 5; AMF No. 21.) In addition to a property at 3358 Marisma Street (the Marisma Property), Barreto also planned to show Lanfranco other properties. (SSUMF No. 5; AMF No. 22.) Given Lanfranco's finances, Barreto discussed with him selling the Laurel Property or else proceed through HomeLight so he could make a purchase. (AMF Nos. 23, 25.) HomeLight is designed to protect sellers in a buy/sell transaction by providing them with up to 90 percent of their property's current value to purchase a replacement property. (AMF Nos. 24-25.)

While Lanfranco was still represented by Barreto, defendant Doratriz Padilla poached him as her own client. (AMF No. 28.) Padilla took no steps to determine whether Lanfranco already had an agent and began working with him while he was still represented by Barreto. (AMF No. 30.) She brought Lanfranco food and snacks and offered him back rubs and other signs of physical affection, flirtatious conduct that made Lanfranco's wife very uncomfortable. (AMF Nos. 35-36.) Due to Lanfranco's mental illness, his friend and prior agent, Patrick Ryan, had always included family members in property discussions. (AMF No. 37.) Padilla did not include Lanfranco's family members in conversations. (AMF No. 38.) While Barreto had put contingencies in place to assist Lanfranco to afford the Marisma Property, Padilla helped Lanfranco find specialty financing for an all cash, no-contingencies offer on that property. (AMF No. 44.)

The Marisma Property was listed for \$1.849 million, which Padilla believed was more than its fair market value. (AMF Nos. 45, 53.) Although Lanfranco agreed to make an offer under \$1.849 million on the Marisma Property, Padilla communicated that she had learned from the seller's agent that the property already had a lot of offers and the seller was expecting over \$2 million. (AMF No. 46.) The seller's agent denied that she communicated to Padilla what sort of offer needed to be made in order to be competitive. (AMF No. 47.) Based on the information Padilla provided to Lanfranco, he authorized her to make a \$2.05 million, all-cash, no contingencies offer on the Marisma Property, the only offer that was made on the property. (AMF Nos. 48-49.) Even though \$2.05 million was more than the amount she thought the property was worth, Padilla helped Lanfranco make the all-cash offer with no contingencies. (AMF Nos. 44, 50.) This higher price allowed Padilla to earn a higher commission. (AMF No. 52.) After Padilla made the offer on the Marisma property, the sellers accepted that offer within a matter of hours. (AMF No. 54.)

Instead of putting in place any contingencies or other protections for Lanfranco, Padilla sent a copy of the completed residential purchase agreement to Conrado Perez of LoanDepot. (AMF No. 55.) Perez forwarded the signed agreement to mortgage broker Dean Delis. (AMF No. 56.) Delis contacted Bridge Lending, which agreed to offer Lanfranco a bridge loan (collateralized by both his Laurel property and the newly acquired Marisma property), which required Lanfranco to make monthly interest payments of \$14,520.83 until he could sell the Laurel property. (AMF No. 57.) Once he sold the Laurel property, under the terms of the loan he still owed a monthly mortgage payment of nearly \$8,000 per month, whereas previously his

mortgage payment on Laurel had been only \$2,609 per month. (AMF Nos. 58-59.) Further, after one year, a balloon payment in the full amount was due on June 1, 2023. (AMF No. 57.)

When Padilla put in the offer of \$2.05 million for the Marisma Property, Lanfranco only had about \$420,000 in assets. (AMF No. 68.) Padilla knew that Lanfranco had to sell the Laurel Property at close to the price he already had to pay for the Marisma Property. (AMF No. 69.) While Lanfranco indicated that he expected the Laurel Property to sell for over \$2 million, Padilla did not believe it was worth even \$1.698 million. (Defts' SSUMF No. 35; AMF No. 70.) Nonetheless, Padilla listed the Laurel Property for \$1.698 million on April 26, 2022. (SSUMF No. 35.) Padilla told Lanfranco they could just lower the price later if the price was too high even though she knew the value of the property would decrease if it did not sell quickly. (AMF No. 72.) Just two days later, on April 28, 2022, she dropped the price on the Laurel Property to \$1,580,000. (AMF No. 73.) Another five days later, she dropped the price again, this time to \$1,438,000. (AMF No. 74.) When no offers were received, she eventually lowered the price to \$1.38 million in June. (SSUMF No. 36.) Padilla knew Lanfranco had to accept an offer on the Laurel property to cover the purchase of the Marisma property. (AMF No. 75.) Lanfranco eventually accepted the only written offer he received on the Laurel property of \$1.32 million. (AMF No. 77.)

After Lanfranco moved into the Marisma Property, he began discussing refinancing options with Shawn Kernes. (AMF No. 79.) Lanfranco's mortgage broker and the lender had conversed about their concern that Lanfranco could not qualify for the necessary refinance loan with social security and dividend as his only sources of income. (AMF No. 80.) On May 3, 2023, the lender informed Lanfranco that they would foreclose on the Marisma Property if he did not pay delinquent installments within 15 days. (AMF No. 86.) Ultimately, Lanfranco was unable to refinance and received a foreclosure notice after less than a year. (AMF Nos. 86-88.) At this point, Lanfranco contacted Patrick Ryan, who assisted him in selling the property. (AMF No. 87.) On June 22, 2023, Lanfranco sold the Marisma Property for \$1.7 million, a loss of over \$300,000. (AMF No. 88.) Lanfranco told Ryan he needed to sell the Marisma Property because he could not afford the loan payments. (AMF No. 87.)

B. Legal Standard

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (*Id.*, subd. (c).)

"A party may move for summary adjudication as to one or more causes of action within an action ... if the party contends that the cause of action has no merit" (Code Civ. Proc., § 437c, subd. (f)(1).) A cause of action has no merit if one or more of its elements cannot be separately established or an affirmative defense can be established. (*Id.*, subd. (o).)

A defendant moving for summary judgment or summary adjudication has an initial burden of showing either that one or more elements of a cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as either to the cause of action or a defense thereto, as applicable. (*Ibid.*)

The moving party's ultimate burden of persuasion that there are no issues of triable fact, however, never shifts to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden is unaffected by the strength or weakness of the showing in opposition to the motion (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519), and summary judgment must be denied—despite deficiencies in the opposition — if the burden has not been carried. (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416.)

Because summary judgment deprives an adverse party of the right to a trial, any doubts are resolved in favor of the party opposing the motion. (*Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 830; *See's Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900.) Thus, “[t]he moving party’s affidavits are to be strictly construed, and ... all conflicts in the affidavits are to be resolved in favor of the opposing party and all reasonable inferences are to be drawn in favor of that party as well.” (*Hufft v. Horowitz* (1992) 4 Cal.App.4th 8, 20.)

C. Discussion

1. Triable Issues of Fact Exist Regarding Plaintiff’s Financial Elder Abuse Claim

Under California law, financial abuse of an elder occurs when a person or entity: (1) takes, secretes, appropriates, obtains, or retains real or personal property of an elder for a wrongful use or with intent to defraud; (2) assists in taking such property for wrongful use or with intent to defraud; or (3) takes such property by undue influence. (Welf. & Inst. Code, § 15610.30, subd. (a).) Property is considered taken when an elder is deprived of any property right, including through agreements, transfers, or bequests. (*Id.*, subd. (c).) A person is deemed to have taken property for wrongful use if they knew or should have known the conduct was likely to be harmful to the elder. (*Id.*, subd. (b).)

Here, Padilla testified at her deposition that she knew Lanfranco would likely not be able to cover the loan for the Marisma Property if he did not sell the Laurel Property for close to \$2 million – i.e., for roughly the same price as the Marisma Property. (AMF No. 69.) Yet, she facilitated his purchase of the Marisma Property for \$2.05 million without any contingencies, earning herself a significant commission, even though she believed the price was too high and despite having concerns that the Laurel Property would not sell for even \$1.5 million. She then listed the Laurel Property at \$1.698 million – above what she believed it was worth – and told Lanfranco that they could lower the price later, despite knowing that the property’s value would decrease if it did not sell quickly. (AMF Nos. 71, 72.) Within one week, she dropped the price twice, with the final listing at \$1.438 million. (AMF Nos. 73, 74.) Needing to sell the Laurel Property to cover the purchase of the Marisma Property, Lanfranco eventually accepted

the only written offer he ever received, for \$1.32 million. (AMF Nos. 75, 77.) This evidence establishes that there is a triable issue of fact as to whether defendant Padilla engaged in this conduct with knowledge that that Lanfranco would likely be harmed.

Accordingly, defendants' motion for summary judgment or, alternatively, summary adjudication of issues is **DENIED** as to plaintiff's claim for financial elder abuse.

2. Triable Issues of Fact Exist Regarding Plaintiff's Breach of Fiduciary Duties Claim

Under both the common law and Civil Code, section 2079.16, real estate brokers owe their own clients a "fiduciary duty of utmost care, integrity, honesty, and loyalty." (*Field v. Century 21 Klowden-Forness Realty* (1998) 63 Cal.App.4th 18, 26-27.) The agent's fiduciary duties to a client includes the duty to exercise the utmost good faith and loyalty and to reasonably provide the principal with information that the principal deems important. (*Id.*, at p. 25.) An agent's ignorance of a particular fact "does not excuse her failure to make reasonable inquiry." (*Montoya v. McLeod* (1985) 176 Cal.App.3d 57, 65.)

"[A] real estate agent, as a fiduciary, is . . . liable to his principal for constructive fraud," which "comprises any act, omission or concealment involving a breach of legal or equitable duty, trust or confidence which results in damage to another even though the conduct is not otherwise fraudulent." (*Michel v. Moore & Assocs., Inc.* (2007) 156 Cal.App.4th 756, 762–63.)

Here, plaintiff contends that Padilla affirmatively misrepresented to Lanfranco that the Marisma Property would require a bid of at least \$2 million, based on her discussions with the listing agent, Sandra Rostad. Padilla testified at her deposition that when she informed the listing agent, Sandra Rostad, of her intent to make an offer below the asking price of \$1.849 million, Rostad told her: "Not going to happen. I have way too many people that, you know, calling, and the seller will not go — you know, we have offers up to — up to \$2 million," and that it was the seller's expectation the property would sell for "a little over 2 [million]." (Wang Decl., exh. 3 [Padilla tr.], at p. 103:5-25) However, Rostad testified at her deposition that she "[a]bsolutely [does] not" recall communicating that to Padilla and did not provide Padilla any indication of what offers had been received and what sort of offer was needed to be competitive toward purchasing the Marisma Property. (Wang Decl., exh. 4 [Rostad tr.], at pp. 31:3-32:6.) Rostad further testified that Lanfranco's offer was the only offer received on the property and that the sellers accepted the offer the same day it was made. (*Id.*, at pp. 36:6-9, 50:25-52:3.) Padilla has admitted that Lanfranco paid more for the Marisma Property than she believed it was worth at the time. (Wang Decl., exh. 18, [Padilla Response to RFA, Set One, No. 10].) Defendants do not dispute these facts but argue that they are immaterial. (Defs.' Responses to SSUMF, Nos. 46-50.)

Plaintiff has produced evidence showing that a triable issue of fact exists as to whether Padilla affirmatively misrepresented to Lanfranco that a bid of \$2 million or higher would be necessary to purchase the Marisma Property. Such an affirmative misrepresentation would be a clear breach of Padilla's duty of loyalty and good faith. Even assuming the representation was not made with an intent to deceive, a question of fact would remain as to whether Padilla breached

her duty of good faith and loyalty to investigate further regarding value of the property, given that no other offers had been made on the property, and that Padilla herself did not believe the property was worth the price at which it was listed.

Accordingly, defendants' motion for summary judgement or, alternatively, summary adjudication of issues is **DENIED** as to plaintiff's claim for breach of fiduciary duty.

3. Triable Issue of Fact Exist Regarding Plaintiff's Negligence Claim

Both parties argue that the determination of plaintiff's negligence claim follows their respective positions on the determination of plaintiff's claim for breach of fiduciary duty.

For the same reasons discussed in the previous section concerning plaintiff's claim for breach of fiduciary duty, defendants' motion for summary judgment or, alternatively, summary adjudication of issues concerning plaintiff's negligence claim is **DENIED**.

4. Triable Issue of Fact Exist Regarding Plaintiff's Demand for Punitive Damages

To support a claim for punitive damages, a plaintiff must prove by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice pursuant to Civil Code, section 3294. Without these facts, a claim for punitive damages must be rejected. (*College Hospital, Inc. v. Super. Ct.* (1994) 8 Cal.4th 704, 721; *Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872; *Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63.)

Civil Code, section 3294, subdivision (c) provides that:

- (1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [Despicable conduct" is defined in CACI Jury Instruction No. 3114 (2026) as "so vile, base, or contemptible that it would be looked down on and despised by reasonable people."]
- (2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.
- (3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

A broker acts in a fraudulent or malicious manner when they fail to fully disclose to their clients "any facts known to them which were material to the transaction and which might affect their clients' decision." (*Bate v. Marsteller* (1965) 232 Cal.App.2d 605, 612-13 [finding

evidence of such fraudulent and malicious conduct where broker told client that \$38,200 was the highest possible price even though he knew the client was asking for \$50,000 to \$52,000].)

The evidence that Padilla failed to disclose that the Marisma Property was listed at a price above its fair market value and that she falsely claimed that Lanfranco needed to offer over \$2 million to purchase the property supports plaintiff's demand for punitive damage. A jury could reasonably find Padilla intentionally deceived Lanfranco to earn a higher commission.

Accordingly, defendant's motion for summary judgement or, alternatively, summary adjudication of issues is **DENIED** as to plaintiff's demand for punitive damages against defendant Padilla.

However, plaintiff has not provided facts to establish triable issues of fact concerning the liability of defendant eXp Realty for punitive damages. Plaintiff argues that eXp ratified Padilla's conduct based on evidence that it was aware of her misconduct through her emails with eXp's broker concerning Ed Barreto's complaint against her, and that Padilla remained employed by eXp thereafter, and is represented by the same counsel as eXp in this lawsuit. Plaintiff has provided no citations to evidence concerning the alleged complaint made by Barreto, nor other evidence establishing eXp's awareness of wrongful conduct by Padilla. A review of the excerpts of transcripts from Barreto's deposition, submitted by plaintiffs (Wang Decl., exh. 7) suggest that he may have complained about Padilla poaching his client, Lanfranco. Even if the evidence before the court was conclusive on that point, it would hardly begin to inform eXp of the material facts giving rise to Padilla's alleged misconduct here. Moreover, ratification cannot be based solely on the fact that an employer and employee are represented by the same counsel in a lawsuit arising from the employee's alleged wrongdoing. (*Plancarte v. Guardsmark* (2004) 118 Cal.App.4th 640, 647-649.)

Accordingly, defendants' motion for summary judgment or, alternatively, summary adjudication of issues is **GRANTED** as to plaintiff's demand for punitive damages against defendant eXp Realty.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 5**

24-CIV-05711

WPS GLOBAL CONNEX, LLC VS. ROSIE BARRETT, ET AL

WPS GLOBAL CONNEX, LLC
ROSIE BARRETT

CRISOSTOMO G. IBARRA
KUSCHA HATAMI FARD

Motion to be Relieved as Counsel (Kuscha Hatami Fard)

TENTATIVE RULING:

The unopposed motion of Kuscha Hatami Fard to be relieved as counsel of record for defendants Rosie Barret and James E. Barrett Corp. is denied without prejudice for lack of proof that all parties received proper notice of the hearing date. The motion was filed and served on March 23, 2026. However, the hearing date on the notice of motion was changed from April 15, 2026, to July 1, 2026 at the time of filing. To date, the court's record does not indicate that an amended notice of motion has been filed or served.
